

PETITION FOR APPOINTMENT OF AN ARBITRATOR

Special Suit No..... of.....

In the High Court at Calcutta Ordinary Original Civil Jurisdiction

In the matter of Arbitration
and Conciliation Act 1996

And

In the matter of an application under section 8
of the Arbitration and Conciliation Act 1996

And

Builders India Private Ltd., a company registered
under the Companies Act 1956 and carrying on
business at 7A, Camac Street, Calcutta 700 016

Petitioner

versus

S.N. Udyog Private Ltd., a company
registered under the Companies Act 1956 and
carrying on business at 6 S.P. Mukherjee
Road, Calcutta 700 025

Respondent

To

The Hon'ble Mr.....
..... Chief Justice and
His Companion Justices of the
said Hon'ble Court

The humble petition of Builders India
Private Ltd., the petitioner above-named,
most respectfully

SHEWETH:

1. Your petitioner entered into a contract with the respondent for construction of certain flats and guest houses on terms and conditions contained in an Agreement dated 5th September 1995.
2. Your petitioner completed the work and offered delivery of flats and guest houses duly constructed and demanded from the respondent payment of the final bill.
3. The respondent failed and neglected to pay the outstanding amount and your petitioner in accordance with the arbitration clause in the agreement referred the disputes to the arbitration of Mr. Rajib Khaitan, Advocate and gave notice accordingly to the respondent.
4. No reply was received to the said notice and the arbitration proceedings could not commence.
5. Your petitioner has now been served with a Summons to appear and defend a suit which has been filed by the respondent for damages against the petitioner for breach of the said contract.
6. Your petitioner has to enter appearance and file a statement in the said suit.
7. Your petitioner states that the said suit is in respect of the contract for construction of house, flats and

guest houses which work the petitioner has completed and submitted the final bill but payment has not been received. The disputes and differences arose by and between the petitioner and the respondent in relation to the construction and also payment of bills of your petitioner.

8. By virtue of the arbitration clause in the said contract your petitioner duly served a notice on the respondent and appointed the Advocate as the sole arbitrator.

9. Your petitioner was and is still ready and willing to have the disputes and differences adjudicated upon by the Arbitrator to be appointed under the Arbitration Clause in the agreement notice whereunder was served on the respondent. However because of its failure to appoint the sole Arbitrator as stated by your petitioner, this Hon'ble Court will be pleased to appoint an Arbitrator under section 11 of the Arbitration and Conciliation Act 1996.

10. Your petitioner states that in the facts and circumstances of the case the proceedings in the said suit be stayed, an Arbitrator be appointed to resolve the disputes between the parties covered by the said suit and the Award be made.

11. Unless orders are made as prayed for your petitioner will suffer loss and prejudice.

12. This application is made *bona fide* and in the interest of justice.

13. Your petitioner therefore humbly prays Your Lordships for the following orders:

(a) Stay of further proceedings in the above suit;

(b) An Arbitrator be appointed to resolve the disputes raised in the suit or otherwise in the arbitration proceedings;

(c) Costs of this application be the costs in the arbitration proceedings;

(d) Further orders be made and directions be given as to this Hon'ble Court may deem fit and proper.

And your petitioner, as in duty bound, shall ever pray.

Verification

I,.....son of.....aged about.....years, working for gain at 7A, Camac Street, Calcutta 700016 do hereby solemnly affirm and say as follows:

I am the Manager of Builders India Private Ltd., and a principal officer and a Constituted Attorney. I know and I have made myself acquainted with the facts and circumstances of the case and I am able to depose thereto. I am competent to affirm and I do affirm and declare and verify on behalf of the petitioner. The statements contained in paragraphs 1 to 11 of the foregoing petition are true to my knowledge based on records maintained by the petitioner and believed by me to be true. Solemnly affirmed by the said Mr.....pursuant to a Board Resolution dated.....of Builders India Private Ltd. in the Court House at Calcutta on this day of November 2005.

Before me Commissioner